

**CHAPTER ccxxiii.**

An Act to extend the City and County of Bristol and for other purposes. A.D. 1904.
[15th August 1904.]

WHEREAS the city and county of Bristol (in this Act called “the existing city”) is a municipal borough subject to the Acts relating to municipal corporations and under the government of the lord mayor aldermen and burgesses (in this Act called “the Corporation”):

And whereas the Corporation acting by the council are the urban sanitary authority for the district of the said borough:

And whereas the existing city is a county of itself and has a separate court of quarter sessions commission of the peace police force sheriff and coroner and has an ancient court of record (commonly known as “the Tolzey Court”) and a court of Pied Poudré:

And whereas the existing city is a county borough under the Local Government Act 1888:

And whereas under the Education Act 1902 the Corporation are the education authority for the existing city:

And whereas the Acts and Orders specified in the First Schedule to this Act (save so far as any of them is amended by any later Act or Order among them) are now in force within the city which Acts and Orders are in this Act respectively referred to as an Act or Order of the year in which the same was passed:

And whereas by the Act of 1897 the boundaries of the then existing city were extended and the city as thereby extended was constituted a separate poor law union by the name of the Bristol Union:

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And whereas by an Order of the council of the city (hereinafter referred to as "the council") dated the twelfth day of July one thousand eight hundred and ninety-eight confirmed with modifications by an Order of the Local Government Board dated the ninth day of September one thousand eight hundred and ninety-eight the several parishes comprised in the then city of Bristol were amalgamated into one parish by the name of the parish of Bristol :

And whereas by the Act of 1901 the limits of the then parish and city of Bristol were extended so as to include certain parts of the parishes of Shirehampton and Henbury :

And whereas by the Act of 1902 the said limits were further extended so as to include other parts of the said parishes of Shirehampton and Henbury :

And whereas it is expedient that the existing parish and city should be further extended so as to include the whole of the parishes of Shirehampton and Westbury-upon-Trym in the rural district of Barton Regis the whole of the parish and urban district of Horfield and those parts of the parish of Henbury in the said rural district of Barton Regis which are respectively described in the Second Schedule to this Act (which parishes and parts of a parish are in this Act referred to as "the added area") :

And whereas the parish council of the parish of Shirehampton and the council of the rural district of Barton Regis are the burial authorities for the parishes of Shirehampton and Westbury-upon-Trym respectively :

And whereas it is expedient that the council of the urban district of Horfield and the parish councils of the parishes of Shirehampton and Westbury-upon-Trym should be dissolved and that the said urban district and parishes and the remainder of the added area should be detached from the jurisdiction of the county council justices district and parish councils sanitary burial education and other authorities having authority therein and that the Corporation should be constituted the sole authority for all municipal sanitary and educational government within and the burial board for the city as extended by this Act :

And whereas it is expedient that the council of the rural district of Barton Regis should be dissolved and that the parishes and part of a parish in that district and not comprised in the added area should be transferred to the rural districts of Thornbury and Chipping Sodbury respectively as herein-after provided :

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And whereas the added area forms part of the Barton Regis Poor Law Union and it is expedient that the same should be detached therefrom and transferred to the Bristol Union and that the said Barton Regis Poor Law Union should be dissolved and that the parishes and part of a parish in that union and not comprised in the added area should be transferred to the Thornbury and Chipping Sodbury Poor Law Unions respectively as herein-after provided :

And whereas the Barton Regis Rural District Council are authorised to supply electricity within their district under the Barton Regis Electric Lighting Order 1902 and it is expedient that the said Order should be repealed to the extent herein-after mentioned and that the powers of the said Order as varied by this Act should be transferred to and become exerciseable by the Corporation as herein-after provided :

And whereas it is expedient to make provision for such adjustment of the rights property and liabilities of the said several authorities as may be rendered equitable by reason of the extension of the existing city and the alteration of parishes and unions and districts by this Act effected :

And whereas by the Clifton and Durdham Downs (Bristol) Act 1861 the Corporation were empowered to expend in carrying that Act into execution any sum not exceeding in any one year the sum of three hundred pounds and it is expedient that the amount which the Corporation may expend under the said Act as aforesaid should be increased as by this Act provided :

24 & 25 Vict.
cap. xiv.

And whereas the Corporation are the owners of the docks in the existing city :

And whereas it is expedient that the rates of tonnage which the Corporation may take under the Bristol Dock Act 1848 should be revised and that the vessels in respect of which such rates may be taken as set out in the First Schedule to that Act should be re-classified as by this Act provided :

11 & 12 Vict.
cap. xliii.

And whereas it is expedient that the other provisions contained in this Act should be sanctioned :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the twentieth day of October one thousand nine hundred and three after ten clear days' notice by public advertisement of such meeting and of the purpose thereof

A.D. 1904. — in the Bristol Mercury a newspaper published and circulating in the city (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and rate of the city :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the eighth day of March one thousand nine hundred and four being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas in relation to the promotion of the Bill the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PART I.

PRELIMINARY.

Short title.

1. This Act may be cited as the Bristol Corporation Act 1904.

Act divided into Parts.

2. This Act is divided into Parts as follows (that is to say) :—

Part I.—Preliminary.

Part II.—Dissolution of certain Authorities and detaching added Area from Jurisdiction of Local Authorities.

Part III.—Extension of City Boundaries &c.

Part IV.—Alteration of Unions &c.

Part V.—Rates and Borrowing.

Part VI.—Miscellaneous.

Interpretation.

3. In this Act unless the subject or context otherwise requires—

“The existing city” means the city and county of Bristol as existing immediately before the passing of this Act;

- “The city” means the city and county of Bristol as extended by this Act; A.D. 1904.
- “The added area” means the parishes and parts of a parish by this Act added to the existing city;
- “The Corporation” means the lord mayor aldermen and burgesses of the city whether acting under the provisions of the Municipal Corporations Acts or in the execution of the Acts relating to the port and harbour of Bristol;
- “The lord mayor” means the lord mayor of the existing city;
- “The council” means the council of the existing city;
- “The recorder” “the sheriff” “the town clerk” “the clerk of the peace” “the overseers of the poor” and “the coroner” mean respectively the recorder the sheriff the town clerk the clerk of the peace the overseers of the poor and the coroner of the existing city;
- “The local courts” means the Tolzey Court and the court of Pied Poudré of the existing city;
- “The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the city;
- “The county council” means the county council for the administrative county of Gloucester;
- “The Horfield Council” means the urban district council of Horfield;
- “The Barton Regis Council” “the Thornbury Council” and “the Chipping Sodbury Council” mean respectively the rural district councils of Barton Regis Thornbury and Chipping Sodbury;
- “The Shirehampton Council” “the Westbury Council” and “the Henbury Council” mean respectively the parish councils for the parishes of Shirehampton Westbury-upon-Trym and Henbury;
- “The three councils” means the Horfield Council the Shirehampton Council and the Westbury Council;
- “The Bristol Union” “the Barton Regis Union” “the Thornbury Union” and “the Chipping Sodbury Union” mean the poor law unions of Bristol Barton Regis Thornbury and Chipping Sodbury respectively;
- “The Barton Regis Guardians” “the Thornbury Guardians” and “the Chipping Sodbury Guardians” mean the boards

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of guardians of the Barton Regis Union the Thornbury Union and the Chipping Sodbury Union respectively;

“The Bristol Guardians” means the board of guardians of the parish of Bristol;

“The Municipal Corporations Acts” means the Municipal Corporations Act 1882 and any Acts amending the same;

“The standing joint committee” means the Gloucestershire Standing Joint Committee;

“The city plan” means the plan of the city signed in triplicate by the Right Honourable the Earl of Camperdown the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy of which has been deposited in the Parliament Office House of Lords and one copy in the Private Bill Office of the House of Commons;

“The Order of 1902” means the Barton Regis Electric Lighting Order 1902.

Commence-
ment of Act.

4. This Act shall come into operation for the following purposes at the following dates respectively (that is to say):—

For the purposes of the division of the added area into wards and for all proceedings connected with the preparation revision and completion of lists and registers of electors or of lists of burgesses and for all proceedings preliminary to the municipal elections of one thousand nine hundred and four on its passing:

For all other purposes (save as expressly provided) on the first day of October one thousand nine hundred and four:

The last-mentioned date is herein-after referred to as “the commencement of this Act.”

PART II.

DISSOLUTION OF CERTAIN AUTHORITIES AND DETACHING ADDED AREA FROM JURISDICTION OF LOCAL AUTHORITIES.

Certain au-
thorities
dissolved &c.

5. From and after the commencement of this Act the three councils and the Barton Regis Council are hereby dissolved and the parts of the parish of Henbury comprised in the added area are detached from the district jurisdiction and powers of the Henbury Council and of any committees of that council.

As to parish
of Henbury.

6.—(1) From and after the commencement of this Act the parts of the parish of Henbury comprised in the added area shall cease to form part of the said parish.

(2) The parish council of the said parish shall continue and shall be deemed to have been elected for and shall be the parish council for the said parish as diminished by this Act. A.D. 1904.

7.—(1) From and after the commencement of this Act the parish of Henbury as diminished by this Act shall for all purposes be deemed to be transferred to and to form part of the rural district of Thornbury in the county of Gloucester and to be subject to the jurisdiction of the Thornbury Council and the parishes of Filton Stoke Gifford and Winterbourne shall for all purposes be deemed to be transferred to and to form part of the rural district of Chipping Sodbury in the same county and to be subject to the jurisdiction of the Chipping Sodbury Council. Transfer of excluded parishes in Barton Regis Rural District to other rural districts.

(2) Until rural district councillors shall have been elected to represent the said parishes on the Thornbury Council and the Chipping Sodbury Council respectively the persons who are at the commencement of this Act rural district councillors elected to represent the said parishes respectively on the Barton Regis Council shall be rural district councillors of the Thornbury Council and the Chipping Sodbury Council respectively.

8. Subject to the provisions of this Act and from and after the commencement thereof— Transfer of property of three councils &c.

(1) All property (real and personal) rights privileges powers authorities duties liabilities and easements (including choses in action) whatsoever which immediately before the commencement of this Act belonged to or were vested in or enjoyed by the three councils respectively or (so far as relates to the added area) to in or by the Barton Regis Council or the Henbury Council or any person on their behalf respectively in any capacity (except such powers authorities and duties as are only exerciseable in rural districts) shall be and the same are hereby as from that date vested in the Corporation to the same extent and for the same estate and interest as the same respectively were at the time of the commencement of this Act vested in the three councils respectively or in the Barton Regis Council or the Henbury Council or any person on their behalf respectively and may be held recovered used and enjoyed and shall be undertaken executed and performed accordingly :

(2) All property (real and personal) rights privileges powers authorities duties liabilities and easements (including choses in action) whatsoever which immediately before

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the commencement of this Act belonged to or were vested in or enjoyed by the Barton Regis Council or any person on their behalf in any capacity (so far as relates to the portion of the rural district of Barton Regis not comprised in the added area) shall be and the same are hereby as from that date vested (so far as relates to so much of the parish of Henbury as is by this Act transferred to the rural district of Thornbury) in the Thornbury Council and (so far as relates to the parishes by this Act transferred to the rural district of Chipping Sodbury) in the Chipping Sodbury Council to the same extent and for the same estate and interest as the same respectively were immediately before the commencement of this Act vested in the Barton Regis Council or any person on their behalf and may be held recovered used and enjoyed and shall be undertaken executed and performed accordingly :

- (3) All property (real and personal) rights privileges powers authorities duties liabilities and easements (including choses in action) whatsoever which immediately before the commencement of this Act belonged to or were vested in or enjoyed by the Henbury Council or any person on their behalf in any capacity (so far as relates to the portion of the parish of Henbury not comprised in the added area) shall be and remain as from that date vested in the Henbury Council or such person as aforesaid to the same extent and for the same estate and interest as the same respectively were immediately before the commencement of this Act and may be held recovered used and enjoyed and shall be undertaken executed and performed accordingly.

Conveyances
&c. to remain
in force.

9. Subject to the provisions of this Act—

- (1) All conveyances leases deeds appointments contracts agreements mortgages bonds covenants guarantees securities orders notices resolutions and proceedings made or entered into before the commencement of this Act to with in favour of or by for or on behalf of the three councils respectively or (so far as relates to the added area) the Barton Regis Council or the Henbury Council or any person on their behalf respectively in any capacity and then in force shall be and remain as good valid and effectual in

favour of against and with reference to the Corporation and may be proceeded on and enforced in like manner to all intents and purposes as if the Corporation instead of the three councils respectively or the Barton Regis Council or the Henbury Council had been party or privy thereto :

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- (2) All conveyances leases deeds appointments contracts agreements mortgages bonds covenants guarantees securities orders notices resolutions and proceedings made or entered into before the commencement of this Act to with in favour of or by for or on behalf of the Barton Regis Council or any person on their behalf in any capacity (so far as relates to the portion of the rural district of Barton Regis not comprised in the added area) and then in force shall be and remain as good valid and effectual in favour of against and with reference to the Thornbury Council (so far as relates to so much of the parish of Henbury as is by this Act transferred to the rural district of Thornbury) and the Chipping Sodbury Council (so far as relates to the parishes by this Act transferred to the rural district of Chipping Sodbury) and may be proceeded on and enforced in like manner to all intents and purposes as if the Thornbury Council or the Chipping Sodbury Council as the case may be instead of the Barton Regis Council had been party or privy thereto :

- (3) All conveyances leases deeds appointments contracts agreements mortgages bonds covenants guarantees securities orders notices resolutions and proceedings made or entered into before the commencement of this Act to with in favour of or by for or on behalf of the Henbury Council in relation to the portion of the parish of Henbury not comprised in the added area and then in force shall be and remain as good valid and effectual in favour of against and with reference to the Henbury Council and may be proceeded on and enforced to all intents and purposes as if this Act had not been passed.

10.—(1) Any action suit prosecution or other proceedings whatsoever commenced either by or against the three councils respectively or (so far as relates to the added area) the Barton Regis

Actions &c.
not to abate.

A.D. 1904. Council or the Henbury Council in any capacity before the commencement of this Act shall not abate or be discontinued or prejudicially affected by this Act but on the contrary may be maintained prosecuted or continued by in favour of or against the Corporation in like manner to all intents and purposes as if the Corporation instead of the three councils respectively or the Barton Regis Council or the Henbury Council were parties to such action suit prosecution or proceedings.

(2) Any action suit prosecution or other proceedings whatsoever commenced either by or against the Barton Regis Council in any capacity (so far as relates to the portion of the rural district of Barton Regis not comprised in the added area) before the commencement of this Act shall not abate or be discontinued or prejudicially affected by this Act but on the contrary may be maintained prosecuted or continued (so far as relates to so much of the parish of Henbury as is by this Act transferred to the rural district of Thornbury) by in favour of or against the Thornbury Council and (so far as relates to the parishes by this Act transferred to the rural district of Chipping Sodbury) by in favour of or against the Chipping Sodbury Council in like manner to all intents and purposes as if the Thornbury Council or the Chipping Sodbury Council as the case may be instead of the Barton Regis Council were parties to such action suit prosecution or proceedings.

(3) Any action suit prosecution or other proceedings whatsoever commenced either by or against the Henbury Council in any capacity (so far as relates to the portion of the parish of Henbury not comprised in the added area) before the commencement of this Act shall not abate or be discontinued or prejudicially affected by this Act but on the contrary may be maintained prosecuted or continued by in favour of or against the Henbury Council to all intents and purposes as if this Act had not been passed.

Rates &c.
due to and
by three
councils &c.

11.—(1) All rates fees dues rents and moneys which immediately before the commencement of this Act are due and payable or accruing due and payable to the three councils respectively or (so far as relates to the added area) the Barton Regis Council or the Henbury Council in any capacity shall from and after the commencement of this Act be due and payable to and may be collected or recovered by the Corporation in like manner as they could have been collected or recovered by the three councils respectively or the Barton Regis Council or the Henbury Council and all debts (other than mortgage debts) and moneys which immediately before the commencement of this Act are due or owing by or

recoverable from the three councils respectively or (so far as relates to the added area) the Barton Regis Council or the Henbury Council or for the payment whereof the three councils respectively or (so far as relates to the added area) the Barton Regis Council or the Henbury Council are or but for this Act would be liable shall be paid with all interest (if any) due or to accrue thereon by or be recoverable from the Corporation and shall be accounted for on any adjustment of accounts between the Corporation on the one hand and the Thornbury Council or the Chipping Sodbury Council or the Henbury Council on the other hand under the provisions of this Act.

(2) All rates fees dues rents and moneys which immediately before the commencement of this Act are due and payable or accruing due and payable to the Barton Regis Council in any capacity (so far as relates to the portion of the rural district of Barton Regis not comprised in the added area) shall from and after the commencement of this Act be due and payable to and may be collected or recovered (so far as relates to so much of the parish of Henbury as is by this Act transferred to the rural district of Thornbury) by the Thornbury Council and (so far as relates to the parishes by this Act transferred to the rural district of Chipping Sodbury) by the Chipping Sodbury Council in like manner as they could have been collected or recovered by the Barton Regis Council and all debts (other than mortgage debts) and moneys which immediately before the commencement of this Act are due or owing by or recoverable from the Barton Regis Council in any capacity (so far as relates to the portion of the rural district of Barton Regis not comprised in the added area) or for the payment whereof the Barton Regis Council in any capacity (so far as relates to the portion of the rural district of Barton Regis not comprised in the added area) are or but for this Act would be liable shall be paid with all interest (if any) due or to accrue thereon by or be recoverable from the Thornbury Council or the Chipping Sodbury Council as the case may be and shall be accounted for on any adjustment of accounts between the Thornbury Council on the one hand and the Chipping Sodbury Council on the other hand or between those councils respectively or the local authorities respectively on the one hand and the Corporation on the other hand under the provisions of this Act.

(3) All rates fees dues rents and moneys which immediately before the commencement of this Act are due and payable or accruing due and payable to the Henbury Council in any capacity (so far as relates to the portion of the parish of Henbury not

A.D. 1904. — comprised in the added area) shall from and after the commencement of this Act be and remain due and payable to and may be collected or recovered by the Henbury Council as if this Act had not been passed and all debts (including mortgage debts) and moneys which immediately before the commencement of this Act are due or owing by or recoverable from the Henbury Council in any capacity (so far as relates to the portion of the parish of Henbury not comprised in the added area) or for the payment whereof the Henbury Council (so far as relates to the said portion of the said parish) are liable shall be and remain due and payable or recoverable from the Henbury Council as if this Act had not been passed.

Mortgages.

12.—(1) All mortgage debts of the three councils and all mortgage debts of the Henbury Council and the Barton Regis Council respectively incurred exclusively in respect of any portion of the added area shall be transferred to and become debts from and be discharged and satisfied by the Corporation.

(2) Such of the mortgage debts of the Henbury Council as were incurred partly in respect of the portions of the parish of Henbury comprised in the added area and partly in respect of the portion of the said parish not so comprised shall be equitably apportioned between the Henbury Council on the one hand and the Corporation on the other hand in such manner as may be agreed on between them or as failing agreement shall be adjusted in manner herein-after provided.

(3) Such of the mortgage debts of the Barton Regis Council as were incurred partly in respect of the portion of the rural district of Barton Regis comprised in the added area and partly in respect of the portion of the said rural district not so comprised shall be equitably apportioned between the Corporation on the one hand and the Thornbury Council and the Chipping Sodbury Council or one of them on the other hand and such of the said mortgage debts as were incurred exclusively in respect of any portion of the rural district of Barton Regis not comprised in the added area shall as from the commencement of this Act be transferred to and become debts from and be discharged and satisfied by the Thornbury Council or the Chipping Sodbury Council or shall be equitably apportioned between those councils. If any question shall arise between the Thornbury Council and the Chipping Sodbury Council as to whether any such mortgage debts shall be transferred to one only of those councils and if so to which such question shall be determined in manner provided by the section of this Act of which the marginal note is "Adjustment of accounts"

and all apportionments under this subsection shall be made in manner provided by the same section. A.D. 1904.

(4) The mortgage debts transferred to and the portions of mortgage debts which shall be apportioned to the Corporation as aforesaid shall be charged—

As to the mortgage debts of the Horfield Council and the Barton Regis Council on the district fund and general district rate ;

As to all other mortgage debts on the borough fund and borough rate ;

and shall be paid and satisfied respectively out of the said respective funds and rates.

13.—(1) All byelaws rules and regulations and all orders (other than precepts) made by the three councils respectively or (so far as relates to the added area) by the Barton Regis Council or the Henbury Council in any capacity under any Act of Parliament and in force at the commencement of this Act are hereby annulled but all penalties incurred thereunder and all forfeitures which have ensued by reason thereof may be enforced and recovered by the Corporation in like manner and in all respects as the same respectively might have been enforced and recovered by the three councils respectively or the Barton Regis Council or the Henbury Council in case this Act had not been passed and shall be carried by the Corporation to the credit of the district fund : Byelaws &c.
annulled.

Provided that all plans of new streets and of new buildings within the added area approved by the Horfield Council or the Barton Regis Council before the commencement of this Act shall be valid for the period of two years after that date but at the expiration of that period fresh plans of such new streets and new buildings as shall not at that date have been commenced shall be deposited for the approval of the Corporation which plans shall be in conformity with the byelaws rules and regulations in force within the city.

(2) All such byelaws rules regulations and orders made (in respect of the portion of the rural district of Barton Regis not comprised in the added area) by the Barton Regis Council are hereby annulled but all penalties incurred thereunder and all forfeitures which have ensued by reason thereof may be enforced and recovered (so far as relates to so much of the parish of Henbury as is by this Act transferred to the rural district of Thornbury) by the Thornbury Council and (so far as relates to the parishes by this Act transferred to the rural district of Chipping

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Sodbury) by the Chipping Sodbury Council in like manner and in all respects as the same respectively might have been enforced and recovered by the Barton Regis Council in case this Act had not been passed :

Provided that all plans of new streets and of new buildings within the said portion of the said rural district approved by the Barton Regis Council before the commencement of this Act shall be valid for the period of two years after that date but at the expiration of that period fresh plans of such new streets and new buildings as shall not at that date have been commenced shall be deposited (so far as relates to so much of the parish of Henbury as is by this Act transferred to the rural district of Thornbury) for the approval of the Thornbury Council and (so far as relates to the parishes by this Act transferred to the rural district of Chipping Sodbury) for the approval of the Chipping Sodbury Council and such plans shall be in conformity with the byelaws rules and regulations in force within the said rural districts respectively.

Books to be evidence.

14. All books and other documents directed or authorised to be kept by the three councils respectively or the Barton Regis Council or the Henbury Council by any Act of Parliament and which at the commencement of this Act would be receivable in evidence shall notwithstanding the annulling or diminution of the jurisdiction and powers of the three councils respectively or the Barton Regis Council or the Henbury Council be admitted as evidence before all judicial tribunals and elsewhere.

As to books &c. of Barton Regis Council Barton Regis Guardians and Henbury Council.

15.—(1) All minute books books of account vouchers maps plans and other documents of the like nature (in this section collectively referred to as “documents”) belonging to the Barton Regis Council shall as from the commencement of this Act become the property of the Corporation and may be held by them but the same shall at all reasonable times be open to the inspection free of charge of the Thornbury Council and the Chipping Sodbury Council or any person duly authorised by them respectively who shall be entitled to take copies thereof or extracts therefrom.

(2) All documents belonging to the Barton Regis Guardians shall as from the commencement of this Act become the property of and may be held by the Bristol Guardians but the same shall at all reasonable times be open to the inspection free of charge of the Thornbury Guardians and the Chipping Sodbury Guardians or any person duly authorised by them respectively who shall be entitled to take copies thereof or extracts therefrom.

(3) All documents belonging to the Henbury Council shall notwithstanding the passing of this Act remain the property of and may be held by the Henbury Council but the same shall at all reasonable times be open to the inspection free of charge of the Corporation or any person duly authorised by them who shall be entitled to take copies thereof or extracts therefrom.

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16. The accounts of all receipts and expenditure of the three councils respectively and of the Barton Regis Council up to the commencement of this Act shall be audited and disallowances surcharges and penalties recovered and enforced in like manner as nearly as may be as if this Act had not been passed.

Audit of accounts of three councils &c.

Every authority board committee or officer whose duty it is to make up any accounts or to account for any portion of the receipts or expenditure in any account shall until the audit is completed be deemed for the purpose of such audit to continue in office and be bound to perform the same duties and render the same accounts and be subject to the same liabilities as if this Act had not been passed.

17. From and after the commencement of this Act all officers of the three councils respectively and of the Barton Regis Council and (so far as relates to the added area) of the Henbury Council shall cease to hold their respective offices and employments.

Officers to cease to hold office &c.

18.—(1) Any clerk or other existing officer of the three councils respectively or of the Barton Regis Council or of the Henbury Council who shall be in office at the commencement of this Act and who by virtue of this Act shall suffer any direct pecuniary loss shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Government Act 1888 and that section shall apply accordingly with the substitution of the Corporation for the county council and the Local Government Board for the Treasury. Such compensation may (at the option of the Corporation) be by way of annuity or by payment of a sum in gross.

Compensation to officers of three councils &c.

(2) Any such compensation shall be paid by the Corporation.

(3) The non-acceptance of any office by any such clerk or officer shall not be a bar to his right to compensation.

19.—(1) The Corporation on the one hand and the Henbury Council or the Thornbury Council or the Chipping Sodbury Council on the other hand and the Thornbury Council on the one hand and the Chipping Sodbury Council on the other hand may respectively agree generally for the equitable adjustment of all financial relations

Adjustment of accounts.

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and the settlement of all questions affecting them respectively arising out of or consequent on the extension of the existing city or the provisions of this Act and in default of agreement the matter or matters not so agreed shall on the application of any of the bodies in difference be determined by an arbitrator to be appointed by the Local Government Board.

(2) For the purposes of this section the overseers of the poor for the parish of Henbury shall in respect of any balances in their hands be deemed to be a local authority.

PART III.

EXTENSION OF CITY BOUNDARIES &c.

Extension of
boundaries of
existing city.

20. The boundaries of the existing city are hereby extended so as to comprise and the city shall accordingly comprise in addition to the existing city the following areas namely:—

- (1) The whole of the parishes of Shirehampton and Westbury-upon-Trym in the rural district of Barton Regis ;
- (2) The whole of the parish and urban district of Horfield ;
and
- (3) Those parts of the parish of Henbury in the rural district of Barton Regis which are respectively defined in the Second Schedule to this Act :

And the said parishes and parts of a parish so added to the existing city shall for all purposes be detached from the county of Gloucester and from the jurisdiction and powers of the county council justices of the peace sheriff coroners and officers of that county and shall for all purposes form part of the city and county and parish of Bristol.

The city as extended is delineated on the city plan and described in the Second Schedule to this Act and if there be any discrepancy between the city plan and the said description the latter shall prevail Notice of this provision shall be set forth on the city plan.

Valuation
lists.

21.—(1) Until a new valuation list is made for the parish of Bristol the lists which immediately before the commencement of this Act related to hereditaments situate within the added area shall be deemed to form part of the valuation list in force at the commencement of this Act for the parish of Bristol and shall continue to relate to the said hereditaments.

(2) Until a new valuation list is made for the parish of Henbury the list which now relates to hereditaments situate within

the part of that parish not comprised in the added area shall be the valuation list for the said part of the said parish. A.D. 1904.

22. For the purposes of jury lists and lists of burgesses and county electors and parochial electors the parishes wholly or partly comprised in the added area shall be deemed unaltered until new lists are made. Lists of jury-men and voters.

23. Subject to the provisions of this Act all the real and personal property at the commencement of this Act vested in the Corporation in any capacity or in any trustees committee or society for educational or charitable purposes for the benefit of the existing city are hereby as from that date vested in the Corporation or such trustees committee or society as the case may be for the benefit of the city and all rights privileges benefits and advantages (except the parliamentary franchise) possessed or enjoyed by the burgesses and inhabitants of the existing city including those possessed or enjoyed under any charitable trust shall be and the same are hereby extended to the burgesses and inhabitants of the city but subject to all debts liabilities interests and obligations affecting the same or any part thereof or the Corporation or such trustees committee or society in respect thereof. Corporation property &c. vested for benefit of city.

Save as aforesaid nothing in this section shall affect the right to the benefit of any charity or shall alter or confer any power to alter the defined charitable purposes (if any) to which any property is by law applicable at the passing of this Act.

24. Subject to the provisions of this Act and of the Local Government Act 1888 and of the Local Government Act 1894 no lands or other property in the city shall be liable to contribute to any county or other rates or contribution made after the commencement of this Act by or in accordance with the precept of any board authority or person other than the Bristol Guardians the overseers of the poor of the parish of Bristol and the Corporation but orders or precepts respecting such rates and matters connected therewith made before the commencement of this Act shall be as valid in law and all arrears of any such rates existing at the commencement of this Act may be enforced collected and recovered as if this Act had not been passed. Exemption from liability to county and other rates.

25.—(1) Except as by this Act otherwise expressly provided all the jurisdiction powers rights privileges authorities immunities and duties of the Corporation as a municipal body and of the council and any committee thereof acting in the execution of such Authority of Corporation &c. extended.

A.D. 1904.

enactments as are at the commencement of this Act in force within the existing city and of the Corporation as the urban sanitary authority for the district or any committee thereof and of the Corporation as the burial board and of the Corporation as the education authority shall extend to and throughout the city and all charters and enactments and all byelaws orders and regulations lists of tolls tables of fees and payments and scales of charges at the commencement of this Act in force within and applicable to the existing city or to the burgesses or inhabitants thereof shall subject to the provisions of this Act extend and apply to the city and inhabitants and burgesses thereof until or except in so far as any of such byelaws orders regulations tolls fees payments or charges may be repealed or altered.

(2) Nothing in this Act contained shall be deemed to alter or diminish the rights privileges and authorities of the Bristol Tramways and Carriage Company (Limited) nor to impose upon that company any additional obligations nor shall this Act be construed to give the Corporation any other rights or privileges within the added area in relation to the said company or their undertaking property or affairs than before the commencement of this Act are enjoyed within the added area by the local and road authorities thereof respectively as defined by the Tramways Act 1870.

Jurisdiction
&c. of lord
mayor recorder
justices
&c.

26. The jurisdiction powers authorities rights privileges and duties of the lord mayor the quarter sessions the sheriff the recorder the town clerk the clerk of the peace the coroner the overseers of the poor the local courts and the justices of the peace appointed for the existing city and parish of Bristol and of all constables officers and servants of the existing city and parish of Bristol shall extend to and throughout the city.

Transfer of
lists of pri-
soners &c.

27. Lists of prisoners depositions writs process and particulars and all records and documents relating to or to be executed in connexion with any prosecution action or proceedings pending or existing at the commencement of this Act and appertaining to the added area shall be delivered turned over or transferred and signed in like manner in all respects (as nearly as circumstances will admit) as is required to be done upon a new sheriff coming into office in like manner as if the sheriff of the city were as respects the added area the new sheriff in succession to the sheriff of the county but except so far as may be inconsistent with the foregoing provisions every person committing an offence in the added area before the commencement of this Act shall be tried adjudicated on and dealt with as if this Act had not been passed.

28.—(1) The Corporation on the one hand and the county council on the other hand may agree generally for an equitable adjustment of property income debts liabilities and expenses and of all financial relations and the settlement of all questions affecting the Corporation and the county council arising out of or consequent on the extension of the existing city or the provisions of this Act and in default of agreement on or before the twenty-fifth day of March one thousand nine hundred and six the matter or matters not so agreed shall (on the application of either of the bodies in difference) be determined by the Local Government Board or if that Board think fit by an arbitrator appointed by them. The costs and expenses incurred in such determination shall be borne and paid in such manner as the Local Government Board or such arbitrator shall direct. Provided that for the purpose of any such adjustment as aforesaid county asylum officers shall be deemed to be officers of the county council but that no payment shall be made to the county council on any such adjustment as aforesaid in respect of any such county asylum officer who shall have been compensated under the section of this Act of which the marginal note is "Compensation to existing county officers" and that the county council shall repay to the Corporation any money paid by them to the county council on any such adjustment in respect of any such officer who shall after such adjustment be compensated under the said section not exceeding the amount paid for such compensation.

A.D. 1904.

Adjustment
of questions
affecting
Corporation
and county
council.

(2) For the purposes of any adjustment by the Local Government Board the provisions of the Local Government Act 1888 relating to adjustments between administrative counties and county boroughs shall apply with the necessary modifications. Provided that in lieu of subsection (6) of section 61 of that Act subsections (1) and (5) of section 87 of that Act shall apply to any inquiries which may be directed by the Local Government Board under this section and to the costs of such inquiries. Provided also that subsection (6) of section 32 of that Act shall apply to any agreement or award made under this section.

(3) In any such adjustment provision shall be made for the payment by the Corporation to the county council or by the county council to the Corporation as occasion shall require of such compensation as shall be fair and reasonable for (a) any loss sustained by the county council in respect of the excess of contributions over expenditure from and in the added area prior to the commencement of this Act or (b) for any loss sustained by the Corporation in respect of the excess of expenditure over contributions in and from the added area prior to the commencement of this Act.

A.D. 1904.
County
police.

29.—(1) On the first day of October one thousand nine hundred and four such of the members of the police force of the county of Gloucester as shall be selected by agreement to be made as soon as possible after the passing of this Act between the standing joint committee and the watch committee of the existing city or in default of such agreement as shall be determined by the Secretary of State shall be transferred to and become part of the police force of the city and any member of the county police so transferred to the police force of the city shall hold his office upon the same tenure and upon the same terms and conditions as if this Act had not been passed and while performing the same duties shall receive not less remuneration and be entitled to not less pension (if any) than if this Act had not been passed.

(2) The provisions of section 15 (2) of the Police Act 1890 shall extend and apply to and in relation to any member of the police force transferred under the powers of this section as if such member had removed with the written sanction of the chief constable of the county of Gloucester.

As to police
stations in
added area.

30. All the estate right and interest of the county council in and to the police stations situate in the added area and vested in them respectively and the lands and buildings connected therewith or appurtenant thereto and the fittings and furniture therein shall on the commencement and by virtue of this Act vest in the Corporation. The sum to be paid in respect of and the terms and conditions of such vesting shall be such as may be agreed on between the Corporation and the county council or as failing agreement may be settled by the Local Government Board or an arbitrator under the section of this Act the marginal note whereof is "Adjustment of questions affecting Corporation and county council."

Deposit of
city plan.

31. The city plan shall within two weeks after the passing of this Act be deposited as to one copy in the Office of the Clerk of the Parliaments as to another copy in the Private Bill Office of the House of Commons and as to the third copy with the town clerk at his office and a copy thereof certified by the town clerk shall be sent as soon as may be after such deposit to the Board of Agriculture and Fisheries to the Local Government Board and to the Inland Revenue Department.

Copies of
deposited
city plan to
be evidence.

32. Copies of the city plan deposited with the town clerk or any extract therefrom certified by him to be true shall be received by all courts of justice and elsewhere as *prima facie* evidence of the contents of such plan and such plan shall at all reasonable times

be open to the inspection of persons liable to rates imposed by the Corporation and all persons so liable shall be entitled to a copy of or extract from such plan certified by the town clerk on payment of a reasonable fee for every such copy or extract.

A.D. 1904.

33.—(1) The existing city shall subject to the provisions of this Act continue to be divided into eighteen wards having the same boundaries and names and the same number of councillors as they respectively have at the passing of this Act.

Formation of added area into wards.

(2) The added area shall be divided into such number of wards (in this Act called "the new wards") with such boundaries and names and such number of councillors as may be determined by a commissioner (in this Act referred to as "the commissioner") to be for that purpose appointed by a Secretary of State within three weeks after being requested so to do by the Corporation :

Provided that subject to subsection (10) of section 30 of the Municipal Corporations Act 1882 the number of such councillors shall as nearly as possible bear the same proportion to the number of the councillors of the existing city as the aggregate rateable value and the number of persons rated in the added area bear to the aggregate rateable value and the number of persons rated in the existing city.

(3) The part of the existing city which formerly formed parts of the parishes of Shirehampton and Henbury shall on the passing of this Act be separated from the Horfield ward of the existing city and shall for the purposes of this section be dealt with by the commissioner as though it formed part of the added area.

(4) The commissioner may if he thinks fit add the parish and urban district of Horfield comprised in the added area to the Horfield ward of the existing city or the commissioner may add the said parish or any part or parts thereof to any other ward or wards of the existing city.

34. The commissioner shall commence and proceed with the duties of his appointment with all practicable dispatch and so as to complete the preparation of the scheme for determining the boundaries of the wards and assigning the number of councillors to each ward before the first day of September one thousand nine hundred and four or such later day as may on his application be fixed by a Secretary of State.

Report of commissioner.

35. Subject to the provisions of this Act subsections (10) to (15) of section 30 of the Municipal Corporations Act 1882 shall apply as if they were re-enacted in this Act.

Application of section 30 of 45 & 46 Vict. cap. 50.

A.D. 1904.

First election
of councillors
for new
wards.

36. The first election of councillors for the respective new wards shall be held on the first day of November one thousand nine hundred and four and the lord mayor or such other person as he shall appoint shall be the returning officer at the election for the new wards.

First election
of additional
aldermen.

37. The first election of additional aldermen shall take place on the ninth day of November one thousand nine hundred and four.

Retirement
of additional
aldermen.

38. The additional aldermen elected in the year one thousand nine hundred and four shall retire as follows :—

One-half (or if the number of the additional aldermen be uneven the major part of them) on the ninth day of November one thousand nine hundred and seven :

The other half (or if the number of the additional aldermen be uneven the minor part of them) on the ninth day of November one thousand nine hundred and ten :

The aldermen so first to go out of office shall be those who were elected by the smallest number of votes.

Retirement
of additional
councillors.

39. The councillors so elected in the year one thousand nine hundred and four for the respective new wards shall retire as follows :—

One-third elected by the smallest number of votes on the first day of November one thousand nine hundred and five :

One-third elected by the next smallest number of votes on the first day of November one thousand nine hundred and six :

The remaining one-third on the first day of November one thousand nine hundred and seven.

Provision in
case of
equality of
votes &c.

40. If at the election of aldermen or of councillors to be held in the month of November one thousand nine hundred and four there be an equality of votes between any two or more aldermen or between any two or more councillors or in case of such councillors being elected without a poll the council shall at their meeting on the ninth day of the said month of November or at some adjournment thereof determine the order of retirement of such persons.

Provisions of
Municipal
Corporations
Acts to apply
to elections.

41. Subject to the provisions of this Act all elections vacations of office and rotations of aldermen and councillors of the city shall be governed by the Municipal Corporations Acts.

42. Nothing in this Part of this Act contained shall take away or affect the power to alter the number or boundaries of the wards of the city under the provisions of the Municipal Corporations Acts.

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As to alterations of ward under Municipal Corporations Acts.

43. For the purposes of the county electors' lists lists of burgesses and of parochial electors and registers of Parliamentary voters and burgesses and the burgess roll to be made next after the passing of this Act under the Municipal Corporations Acts and the Registration of Electors Acts 1843 to 1891 and in relation to the functions and offices of the town clerk the overseers of the poor and other officers under those Acts the added area shall be deemed to have always been part of the city. Provided that no such lists or registers or the burgess roll to be so made as aforesaid shall be deemed to be invalid by reason only that the same shall not have been made and published or any notices given at the time or times required prior to the passing of this Act if such lists registers roll or notices be given made and published as soon after the passing of this Act as may be practicable.

Burgess lists and roll &c.

Where any difficulty in giving effect to the provisions of this Act can be obviated or removed by any alteration in or rearrangement of or any other action affecting the said lists roll and registers such alteration rearrangement or action so far as the same may be necessary for giving effect to the said provisions shall be made or taken by the town clerk or the clerk to the county council as the case may require and the overseers of the poor shall render such assistance as may be requisite for the purpose of such alteration rearrangement or action by the town clerk or clerk to the county council as the case may be and such alteration rearrangement or action shall be deemed to be authorised by the provisions in force with respect to such lists roll and registers.

44. If any officer of or paid by the county council or the standing joint committee (including in such expression the county asylum officers and the clerks to the justices of the peace for the petty sessional division of the county of Gloucester in which the added area is situate) shall by virtue of this Act or of anything done in pursuance or in consequence thereof suffer any such direct pecuniary loss as is mentioned in section 120 of the Local Government Act 1888 the provisions of that section shall apply to him with the substitution of the words "borough fund" in subsection (8) of that section for the words "county fund as a payment for general county purposes" and with such other modifications (including the substitution of the Local Government Board for the

Compensation to existing county officers.

A.D. 1904. Treasury) as may be necessary to make those provisions applicable to such officer and to the Corporation and any such officer whose salary shall be reduced within five years from the commencement of this Act on the ground that his duties have been diminished in consequence hereof shall be deemed to have suffered a direct pecuniary loss in consequence of this Act. Such compensation may be by way of annuity or (if so agreed) by payment of a sum in gross and shall be paid by the Corporation out of the borough fund and the amount of such compensation if by way of annuity shall be determined by agreement or if any dispute arise as to the reasonableness of any such reduction or the amount of such annuity such dispute shall be determined by the Local Government Board:

Provided always that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Application
of moneys by
county
council.

45. The county council shall apply all moneys received by them on capital account under this Act in such manner as they may with the sanction of the Local Government Board think fit.

As to Order
of 1902.

46. The Order of 1902 is hereby repealed so far as regards the added area and the powers by the said Order conferred upon the Barton Regis Council of supplying electricity within so much of the rural district of Barton Regis as is not comprised in the added area shall be and the same are hereby transferred to and may subject to the provisions of that Order as amended by this Act be exercised by the Corporation as fully and effectually for all intents and purposes as though the Corporation were named in the Order of 1902 as undertakers instead of the Barton Regis Council.

For pro-
tection of
Bristol Gas
Company.

47. The provisions of sections 15 16 18 19 32 and 33 of the Bristol United Gas Light Company's Act 1853 shall (notwithstanding the extension by this Act of the boundaries of the city and county of Bristol) extend only to and apply only within the city as it existed prior to the passing of the Act of 1895 and nothing in this Act shall be deemed to alter or repeal the limitation of the obligations of the said company contained in the proviso to section 3 of the Bristol United Gas Light Company's Act 1853.

Saving
rights &c.
of Bristol
Waterworks
Company.

48. Nothing in this Act contained shall extend abridge lessen or vary or be construed to extend abridge lessen or vary the rights powers and obligations conferred or imposed on the Bristol Waterworks Company under their several Acts of Parliament or any Acts incorporated therewith and all such rights powers and obligations shall remain in full force without alteration And for the purposes

of the said several Acts of the company and any Acts incorporated therewith as aforesaid the city and county of Bristol and the several parishes and districts referred to in the said several Acts shall be deemed to continue to exist but subject and without prejudice to the section of this Act the marginal note whereof is "Jurisdiction &c. of lord mayor recorder justices &c."

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49. The extension of the existing city as by this Act provided shall not nor shall anything in this Act contained extend lessen or in any manner alter or be deemed or construed to extend lessen or alter the limits within which the Bristol Waterworks Company are authorised to supply water or the terms on which that company shall supply water within those limits but such limits shall remain and continue as if this Act had not been passed and nothing in this Act contained shall take away lessen alter or prejudice or in any manner interfere with the exercise of any of the powers of the said company.

Limits of supply of Bristol Waterworks Company not to be altered.

50. The standing joint committee on the one hand and the Corporation on the other hand may at any time and from time to time agree for the policing of any part or parts of the county of Gloucester or of the city by the respective police forces of the said county and city as may be agreed upon and for the payments to be made by the Corporation or the standing joint committee as the case may be for any such policing by the city or county police force.

Agreements between standing joint committee and Corporation as to policing.

51. In the event of the county council deciding on or before the first day of October one thousand nine hundred and six to sell their estate and interest in the Lawford's Gate police station and petty sessional court the Corporation shall accept and take over the same with the fittings and furniture therein and shall pay to the county council such sum therefor as shall be agreed upon. If any difference shall arise between the Corporation and the county council as to any matter arising under this section such difference shall be determined by the Local Government Board on the application of either of the said parties or if that Board think fit by an arbitrator appointed by them.

As to sale and purchase of Lawford's Gate police station &c.

The costs and expenses incurred in such determination shall be borne and paid in such manner and as the Local Government Board or such arbitrator shall direct.

52. For the protection of Philip Napier Miles or other the owner or owners for the time being of the Kingsweston Estate (including any person having the powers of a tenant for life under the Settled Land Acts 1882 to 1890) and his and their assigns

For protection of Kingsweston Estate.

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(herein-after called "the owner") the following provisions shall unless otherwise agreed in writing between the owner and the Corporation have effect (that is to say) :—

(1) It shall be lawful for the owner notwithstanding anything contained in the Public Health Acts or in any Act relating to improvements in the city or in this Act or in any byelaw made thereunder at his own expense to do all or any of the following things namely :—

(A) To lay construct and maintain in over under along or across any roads or streets already laid out or hereafter to be laid out in the protected area—

(i) Any line or lines of rails connecting the railways of the Avonmouth Light Railway Company with any works warehouses or premises in the protected area and to use or allow to be used such line or lines of rails for the conveyance of waggons or carriages drawn by any description of motive power; and

(ii) Any cables pipes tubes electrical or other wires and apparatus or any means of industrial communication or service;

(B) To grant easements and other rights and privileges of any description whatsoever for any of the purposes aforesaid in over under across or along any such road or street;

(C) To lay out any road or street in the protected area in two carriageways separated by a railway tramway or tramroad but so that each of the two carriageways with the adjoining footways shall not except with the consent of the Corporation be of less width than twenty-six feet and so that means of crossing the railway tramway or tramroad on the level at reasonable distances are provided :

(2) The provisions of the Private Street Works Act 1892 or of any Act amending the same shall not if adopted by the Corporation apply to any road or street already laid out or hereafter to be laid out in the protected area :

(3) No such lines of rails cables pipes tubes electrical or other wires and apparatus or means of industrial communication or service as aforesaid (herein-after collectively referred to as "works") shall be laid or constructed

in over under along or across any road or street which at the time of such laying or construction is repairable by the inhabitants at large otherwise than subject to the following conditions namely :—

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(i) All rails laid under the powers of this section shall be so laid and maintained that where they cross the carriageway or footway of any road or street on the level the upper surfaces thereof shall be upon a level with the surface of the carriageway or footway ;

(ii) Before any works are laid down or constructed under the powers of this section in any road or street the owner shall submit to the Corporation a plan showing the proposed position of such works with regard to the road or street ;

(iii) The Corporation shall within twenty-eight days after the receipt of such plan by them notify in writing to the owner their consent or state their objection to the laying or constructing of such works in the manner shown on such plan or the conditions on which they will consent to the laying or constructing of such works ;

(iv) If within the said period of twenty-eight days the Corporation shall not have given such notice in writing they shall be deemed to have consented to the laying or constructing of such works in the manner shown on such plan ;

(v) No works shall be laid or constructed under the powers of this section before the expiration of the said period of twenty-eight days unless the Corporation shall have notified their consent as aforesaid nor shall any works be laid or constructed after the expiration of the said period of twenty-eight days in respect of which the Corporation shall have stated as aforesaid their objection thereto or in contravention of any condition imposed by the Corporation as aforesaid ;

(vi) No waggons or carriages shall be allowed to remain at rest for more than five minutes at one time on any line of rails crossing the carriageway or footway of any road or street ;

(vii) No line of rails in any road or street laid down under the powers of this section shall be used between

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—

sunset and sunrise unless the same shall be lighted as agreed upon between the engineer of the Corporation and the engineer of the owner and in case they fail to agree then as shall be settled by arbitration and such lighting shall be at the expense of the owner ;

(viii) The owner shall at all times in every road or street where any line of rails crosses the carriageway or footway of any such road or street and at all crossing places referred to in subsection (1) (c) of this section pave the spaces between all rails and for a distance of five yards on each side of every line of rails and maintain and keep such paving in good repair and condition to the satisfaction of the Corporation ;

(ix) The provisions of section 27 of the Tramways Act 1870 shall apply with respect to the laying or constructing of any works under the powers of this section and in construing the said section for the purposes of this section the expression "the promoters" shall mean the owner and the expression "the tramway" shall mean such works ;

(x) The maintenance of any works and the use of any line or lines of rails under the powers of this section shall also be subject to such further reasonable conditions (if any) as the Corporation may think necessary for securing the safety of the public and the use of such roads or streets for other traffic Provided that if any dispute or difference shall arise as to whether any such further condition is or is not reasonable the same shall be determined by an arbitrator to be agreed upon or failing agreement to be appointed on the application of either party by the Board of Trade :

- (4) The owner on the one hand and the Corporation on the other hand may from time to time enter into and carry into effect agreements and arrangements with respect to the making sewerage levelling paving metalling flagging channelling and lighting of any road or street in the protected area and any expenses incurred by the Corporation under or for the purposes of any such agreement or arrangement shall be deemed to be expenses incurred under and for the purpose of the Public Health Act 1875 :

(5) The foregoing provisions of this section shall not apply to any road or street or to any part of the protected area abutting on any road or street used for residential purposes : A.D. 1904.

(6) In this section "the protected area" means so much of the Kingsweston Estate as is shown as coloured pink upon a map signed by Ivor Augustus Forestier-Walker on behalf of the owner and Edmund Judkin Taylor on behalf of the Corporation and also by the Right Honourable the Earl of Camperdown the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred one copy of which has been deposited in the Parliament Office House of Lords and one copy in the Private Bill Office of the House of Commons.

53. For the protection of the Barton Regis Council and the Westbury Council and the inhabitants of that portion of the Barton Regis Rural District which is comprised in the added area the following provisions shall unless otherwise agreed in writing between the Corporation on the one hand and the said councils on the other hand have effect (that is to say) :—

For protec-
tion of Bar-
ton Regis
Council and
Westbury
Council.

(1) The Corporation shall before the first day of October one thousand nine hundred and six lay out and shall thereafter maintain as a recreation ground a portion not being less than ten acres in extent of the enclosure belonging to the Barton Regis Council and numbered 245 on the Ordnance map (second edition 1903) of the parish of Westbury-upon-Trym The portion of the said enclosure to be used for the purpose of such recreation ground shall be that part of Canford Farm which lies nearest to the village of Westbury-upon-Trym :

(2) Within the like period the Corporation shall provide furnish and equip and for ever after maintain in the parish council hall of the said parish a public lending library similar in all respects to the existing library at Shirehampton :

(3) The cemetery at Canford in the said parish shall not be used for the interment of any persons except such as shall be residing in the said parish at the date of their death or shall have resided there previously or the lineal ancestors or issue of such or the wife or husband of such and the Corporation shall not within a period of

A.D. 1904.

eleven years from the first day of October one thousand nine hundred and four provide or permit to be provided in the said parish any other cemetery :

- (4) The Corporation shall not erect a refuse destructor at Canford Farm in the said parish nor shall they permit the said farm to be used as a tip for any refuse except such as may be collected in the said parish :
- (5) In letting the present allotments in the said parish the Corporation shall give a preference to the inhabitants of the said parish over the inhabitants of the rest of the city :
- (6) The Corporation shall within twelve months after the commencement of this Act lay out and for ever after maintain as an ornamental garden the open space at the foot of Westbury Hill :
- (7) Nothing in this Act shall be deemed to authorise the Corporation to do or permit any act or thing in contravention of or which would invalidate any building covenant in force at the passing of this Act affecting any building estate in the said parish of Westbury-upon-Trym nor shall the Corporation erect in the tything of Stoke Bishop any building which would tend to injure or destroy the residential character of the portion of the said parish situate within the said tything :
- (8) Notwithstanding anything in this Act all officers and servants of the Barton Regis Council and the Westbury Council and the Barton Regis Guardians respectively whose duties are by this Act entirely transferred to the Corporation or to the Bristol Guardians shall during good behaviour be continued in their respective offices and employments and hold the same upon terms no less advantageous than those under which they may respectively be serving at the commencement of this Act and at salaries not less than those which they may respectively be receiving at the commencement of this Act :
- (9) The Corporation shall award compensation as from the commencement of this Act to such of the officers of the Barton Regis Guardians and the Barton Regis Council and to the assistant overseers clerks to the Westbury Council and other officers for the parishes of Westbury-upon-Trym Shirehampton and Horfield as

are entitled to compensation under this Act the amounts of such compensation to be fixed as soon as may be after the passing of this Act and such of the said officers as so desire shall be entitled to have their compensation paid by way of a sum in gross to be fixed on the Post Office scale and the Corporation shall if possible employ such of the said officers as so desire in positions similar to and compatible with their present positions at salaries and emoluments which with the compensation allowed to them (unless such compensation be commuted as aforesaid) will make up a sum not less than the amount which such persons were receiving at the commencement of this Act and whilst in the employment of the Corporation the said persons shall hold office during good behaviour on similar terms and conditions as to tenure and with similar rights as to superannuation to those on which they hold office at the commencement of this Act:

- (10) From and after the commencement of this Act the Corporation shall appoint as members of the body of trustees of the Westbury-upon-Trym parochial charities not less than two persons resident in the said parish:
- (11) For valuation for assessment purposes the said parish shall be attached to the district of Clifton and such district shall not be taken out of its proper order for re-valuation or re-assessment:
- (12) Any dispute or difference arising between the Corporation and any person or persons who are or may be interested in the provisions of this section as to the proper construction of such provisions or as to the carrying out of the matters dealt with in this section or in anywise in connexion therewith shall be referred to the decision of Alexander Macmorran one of His Majesty's counsel or such other fit person as shall be mutually agreed upon whose decision shall be final. The expense of any inquiry under this provision shall be borne by the Corporation.

PART IV.

ALTERATION OF UNIONS &c.

54.—(1) Nothing in this Part of this Act shall take away or prejudice any proceeding or thing pending or being done or any security right or remedy for or in respect of any contribution

Contribution
orders of
guardians.

A.D. 1904. — orders of the Barton Regis Guardians for any parish of which the whole or part is included within the city but the same shall so far as they shall be unpaid at the commencement of this Act be paid and collected and payment shall be enforced as if this Act had not been passed.

(2) The provisions of the section of this Act the marginal note whereof is "Audit of accounts of three councils &c." shall extend and apply mutatis mutandis to and in relation to the audit of the accounts of the guardians and officers of the Barton Regis Union and of the overseers of the parishes whereof the whole is comprised in the added area up to the commencement of this Act and to and in relation to such guardians officers and overseers.

Alteration of
unions dis-
solution of
Barton Regis
Union and
transfer of
excluded
parishes to
other unions.

55.—(1) From and after the commencement of this Act the added area shall be transferred to and for all purposes form part of the Bristol Union.

(2) From and after the commencement of this Act the Barton Regis Union shall cease to exist and the parish of Henbury as diminished by this Act shall be transferred to and form part of the Thornbury Union and be subject to the jurisdiction of the Thornbury Guardians and the parishes of Filton Stoke Gifford and Winterbourne shall be transferred to and form part of the Chipping Sodbury Union and be subject to the jurisdiction of the Chipping Sodbury Guardians.

(3) From and after the commencement of this Act the Barton Regis Guardians and all officers of such guardians shall cease to hold office as such and all the powers rights and jurisdiction now exerciseable by those guardians or by any committee of those guardians in respect of the parishes transferred as aforesaid shall be transferred to and become exerciseable by the Thornbury Guardians and the Chipping Sodbury Guardians respectively.

(4) The council shall by order fix the number of guardians to be elected for the added area.

(5) The first election of such guardians shall be held in the month of March one thousand nine hundred and five Until the guardians for the added area shall have been elected the persons who are at the passing of this Act guardians elected for the parish of Horfield and rural district councillors representing the parishes of Shirehampton and Westbury-upon-Trym on the board of the Barton Regis Guardians shall be deemed to be members of the Bristol Board of Guardians and until rural district councillors representing the parishes transferred to the Thornbury and Chipping

Sodbury Unions respectively on the Thornbury and Chipping Sodbury Councils respectively shall have been elected the persons who are at the commencement of this Act rural district councillors representing such parishes on the board of the Barton Regis Guardians shall be deemed to be members of the Thornbury and Chipping Sodbury Boards of Guardians respectively. A.D. 1904.

(6) The parochial register for the election of Bristol Guardians in respect of any parish or part of a parish added to the existing city shall until a new parochial register for the parish of Bristol as extended by this Act is made consist of the persons qualified to vote as parochial electors in such parish or part of a parish.

(7) Subject to the provisions of this Act all elections vacations of office and retirement of guardians shall be regulated by the Local Government Act 1894.

56.—(1) Subject as herein-after in this Act provided all property situate within the added area and all debts and liabilities (so far as they relate to the added area) of the Barton Regis Guardians including all property held in trust for such guardians shall as from the commencement of this Act (in this section referred to as "the said date") become by virtue of this Act the property debts and liabilities of the Bristol Guardians. Transfer of property of guardians.

(2) Subject as aforesaid all property situate outside the added area and all debts and liabilities (so far as they relate to the portion of the Barton Regis Union not comprised in the added area) of the Barton Regis Guardians including all property held in trust for such guardians shall as from the said date become by virtue of this Act (so far as relates to so much of the parish of Henbury as is by this Act transferred to the Thornbury Union) the property debts and liabilities of the Thornbury Guardians and (so far as relates to the parishes by this Act transferred to the Chipping Sodbury Union) the property debts and liabilities of the Chipping Sodbury Guardians.

(3) All persons who immediately before the said date owed any money to the Barton Regis Guardians or to any person on their behalf in respect of anything relating to the added area except in respect of rates shall pay the same with all interest (if any) due or accruing upon the same to the Bristol Guardians and all debts and moneys which (so far as they relate to the added area) immediately before the said date were due by or recoverable from the Barton Regis Guardians or for the payment of which (so far as they relate to the added area) the Barton Regis Guardians were or but for this Act would be liable shall be paid with all

A.D. 1904. — interest (if any) due or accruing upon the same by or be recoverable from the Bristol Guardians.

(4) All persons who immediately before the said date owed any money to the Barton Regis Guardians or to any person on their behalf in respect of anything relating to the portion of the Barton Regis Union not comprised in the added area except in respect of rates shall pay the same with all interest (if any) due or accruing upon the same (so far as relates to so much of the parish of Henbury as is by this Act transferred to the Thornbury Union) to the Thornbury Guardians and (so far as relates to the parishes by this Act transferred to the Chipping Sodbury Union) to the Chipping Sodbury Guardians and all debts and moneys which immediately before the said date were due by or recoverable from the Barton Regis Guardians (so far as they relate to the portion of the Barton Regis Union not comprised in the added area) or for the payment of which the Barton Regis Guardians (so far as they relate to the portion of the Barton Regis Union not comprised in the added area) were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Thornbury Guardians (so far as relates to so much of the parish of Henbury as is by this Act transferred to the Thornbury Union) and the Chipping Sodbury Guardians (so far as relates to the parishes by this Act transferred to the Chipping Sodbury Union).

As to compensation to officers.

57.—(1) Any clerk or other officer of the Barton Regis Guardians who shall be in office at the commencement of this Act and who by virtue thereof shall suffer any direct pecuniary loss shall be deemed to be an officer entitled to compensation within the meaning of section 120 of the Local Government Act 1888 and that section shall apply accordingly with the substitution of the Bristol Guardians for the county council and the Local Government Board for the Treasury. Such compensation may at the option of the Bristol Guardians be by way of annuity or by payment of a sum in gross.

(2) Any such compensation shall be paid by the Bristol Guardians out of their common fund.

(3) Provided always that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

Settlement of paupers.

58. Every person who has acquired or who before the commencement of this Act shall acquire a settlement in any existing parish affected by this Act shall be deemed to have acquired a

settlement in the parish comprising the area in which the circumstances or acts conferring such settlement shall have occurred or been done or if such circumstances or acts shall have occurred or been done in more than one parish such settlement shall be in the parish comprising the place of residence of such person at the time of acquiring such settlement.

A.D. 1904.

59. Any person who shall have acquired a status of irremovability from any existing parish affected by this Act shall be deemed to have acquired a status of irremovability from the parish comprising the area in which he shall reside at the commencement of this Act or (if he shall then be in receipt of relief) from the parish comprising the area in which he was residing at the time of becoming chargeable.

Irremovability of paupers.

60. The Bristol Guardians on the one hand and the Thornbury Guardians and the Chipping Sodbury Guardians or either of them on the other hand and the Thornbury Guardians on the one hand and the Chipping Sodbury Guardians on the other hand may respectively agree generally for the adjustment of all financial relations and questions affecting the said guardians respectively arising out of or consequent on the alteration of the unions by this Act effected or any of the provisions of this Act and in default of agreement the matter or matters not so agreed shall on the application of either of the parties be determined by an arbitrator to be appointed by the Local Government Board.

Arrangements and adjustments consequent on alterations of unions.

61. The Thornbury Guardians and the Chipping Sodbury Guardians shall respectively be entitled to receive at the commencement of this Act such a sum as shall bear to the sum of ten thousand five hundred and forty-two pounds (received by the Barton Regis Guardians upon a financial adjustment under the Act of 1897) the same ratio as the rateable values at the commencement of this Act of the portions of the Barton Regis Union by this Act transferred to the Thornbury Union and the Chipping Sodbury Union respectively bear to the total rateable value at the same date of the whole of the Barton Regis Union as now existing and the provisions of this section shall for the purposes of the section of this Act of which the marginal note is "Arrangements and adjustments consequent on alterations of unions" be deemed to be the adjustment as between the Bristol Guardians on the one hand and the Thornbury Guardians and the Chipping Sodbury Guardians respectively on the other hand and between the Thornbury Guardians on the one hand and the Chipping Sodbury

Financial adjustment with respect to workhouse at Southmead.

A.D. 1904.

Guardians on the other hand of all financial relations and questions affecting the said guardians respectively so far as regards the lands workhouse board room and offices with the furniture and fittings therein and the cottage homes of the Barton Regis Guardians at Southmead but not including the infectious diseases hospital belonging to the Barton Regis Council.

Saving for
Local Go-
vernment
Board.

62. Nothing in this Act contained shall be deemed to limit or affect the powers of the Local Government Board under the Acts relating to the relief of the poor or the powers of that Board or of the county council or of the Corporation under the Local Government Acts.

PART V.

RATES AND BORROWING.

Differential
rating in
added area.

63.—(1) For the purposes of the making assessing and levying of all rates of every description which the Corporation are authorised to make assess and levy the owners and occupiers (as the case may be) of all rateable hereditaments in the following parts of the added area shall be assessed until the month of October one thousand nine hundred and ten and thereafter for a further period of five years at a rate in the pound less per annum by the following amounts than that at which owners and occupiers of like hereditaments in the remainder of the city not subject to any exceptional rate shall be assessed to such rates during the like respective periods :—

Parish or Part of Parish in Added Area.	Reduction in the Pound in Assessment.	
	Until October 1910.	For further Period of Five Years.
	s. d.	s. d.
Horfield - - - - -	2 6	1 3
Shirehampton - - - - -	2 5	1 0
Henbury - - - - -	5 0	2 0
Westbury-upon-Trym - - - - -	3 6	1 9

From and after the expiration of the said period of five years the said parishes and parts of a parish shall be assessed at the same rate in the pound as the remainder of the city not subject to any exceptional rate.

(2) The reduction to be made under the foregoing provisions of this section shall be divided between the borough rate and the general district rate according to the proportion which those several

rates bear to one another in that part of the city to which the reduced assessment does not apply. A.D. 1904.

(3) Nothing in this Act shall be deemed or taken to alter or affect any exemption (whether complete or partial) to which any particular description of property is or may be lawfully entitled under the Public Health Act 1875 or otherwise but the Corporation and their officers and all other persons shall have regard and give effect to every such exemption as aforesaid.

64. The Corporation may from time to time in addition to any moneys they are now authorised to borrow under any of the provisions of any other Act borrow at interest on the following securities for the following purposes any sum or sums not exceeding the following sums (that is to say) :—

Power to Corporation to borrow.

On the security of the borough fund and borough rate—

For paying the costs charges and expenses of and in relation to this Act as herein-after defined and of and in relation to the paying off and re-borrowing of moneys under the powers of this Act the sums requisite for the purpose ;

For payment of any compensation by this Act authorised to be paid by the Corporation the amount of such compensation ;

For repayment of the portions (if any) apportioned to the Corporation of the mortgage debts of the county council the amount so apportioned ;

For repayment of any moneys properly chargeable to capital and payable by reason of any adjustment made under the provisions of this Act the respective amounts of those moneys :

On the security of the district fund and general district rate—

For repayment of the mortgage debts of the three councils or any of them and the portions apportioned to the Corporation of the mortgage debts of the Barton Regis Council and the Henbury Council the respective amounts of those debts and portions.

65. The Corporation shall repay or make provision for repaying all moneys borrowed under the powers of this Act and all mortgage debts transferred to the Corporation under the provisions of this Act within the respective periods herein-after mentioned (viz.) :—

As to repayment of borrowed moneys.

(A) All moneys borrowed for the payment of the costs charges and expenses of and in relation to this Act and of and

A.D. 1904.
—

in relation to the paying off and re-borrowing of moneys under the powers of this Act in any period not exceeding five years from the passing of this Act :

- (B) All mortgage debts transferred to the Corporation under the provisions of this Act and not repaid by means of moneys borrowed under the powers of this Act in any periods not exceeding the unexpired periods remaining for the repayment of those respective debts at the date of their transfer to the Corporation :
- (c) All moneys borrowed by the Corporation for the repayment of mortgage debts payable by the Corporation under the provisions of this Act in any periods not exceeding the periods sanctioned for the repayment of those respective debts :
- (D) All other moneys borrowed under the provisions of this Act in any period not exceeding twenty-five years from the date or respective dates of borrowing :

And such repayment shall be effected—

Either by equal yearly or half-yearly instalments of principal or of principal and interest ;

Or by means of a sinking fund ;

Or partly by such instalments and partly by a sinking fund.

Every such instalment or instalments shall be paid out of the funds and rates on the security of which the principal moneys in respect of which it or they are so paid were borrowed.

The first payment by instalments or to the sinking fund shall be made on or before the twenty-fifth day of March in the year next following the time of the borrowing of the moneys in respect of which such payment is to be made.

Incorporation of certain sections of Acts of 1897 and 1901.

66. The following sections of the Act of 1897 (that is to say) :—

Section 73 (Power to borrow under Local Loans Act 1875) ;

Section 74 (Incorporation of sections of Public Health Act 1875) ;

Section 76 (As to sinking fund) ;

Section 77 (Power to re-borrow) ;

Section 79 (Annual return with respect to sinking funds &c.) ;

Section 80 (Application of moneys borrowed) ;

and the following sections of the Act of 1901 (that is to say) :—

A.D. 1904.

Section 102 (For protection of lenders);

Section 103 (Priority of existing mortgages);

Section 104 (Corporation not to regard trusts);

shall extend and apply *mutatis mutandis* to and in relation to the borrowing of moneys by the Corporation on mortgage for the purposes of this Act and to the re-borrowing repayment and application of moneys so borrowed and otherwise in respect of such mortgages as if those sections had been re-enacted in this Act with reference thereto.

PART VI.

MISCELLANEOUS.

67. From and after the passing of this Act notwithstanding anything contained in the Clifton and Durdham Downs (Bristol) Act 1861 the Corporation may expend in any one year in carrying that Act into execution any sum or sums not exceeding in the whole the sum of five hundred pounds and the provisions of that Act with respect to the raising and expenditure of the sum thereby authorised to be raised and expended in any one year shall extend and apply to the raising and expenditure for the purposes of the said Act of any sum under the powers of this Act.

Increasing amount authorised to be expended under Clifton and Durdham Downs (Bristol) Act 1861.

68. From and after the passing of this Act the rates of tonnage on vessels mentioned in the Third Schedule to this Act shall be substituted for the rates of tonnage on vessels mentioned in the First Schedule to the Bristol Dock Act 1848 and by that Act authorised to be demanded and received.

Alteration of tonnage rates under Bristol Dock Act 1848.

69. All expenses incurred by the Corporation in the execution of this Act and not otherwise provided for shall be paid out of the borough fund and borough rate.

Expenses of execution of Act.

70. — (1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries

A.D. 1904. — under this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Costs of Act. **71.** All the costs charges and expenses incurred by the Corporation preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund or out of moneys by this Act authorised to be borrowed for that purpose.

The SCHEDULES referred to in the foregoing Act. A.D. 1904.

THE FIRST SCHEDULE.

	The former Acts.
44 & 45 Vict. cap. clxviii. -	The Bristol Dock Act 1881.
47 & 48 Vict. cap. cclv. -	The Bristol Dock Act 1884.
49 & 50 Vict. cap. xevi. -	The Bristol Dock Act 1886.
56 & 57 Vict. cap. clxxxiv. -	The Bristol Dock Act 1893.
58 & 59 Vict. cap. clvii. -	The Bristol Corporation Act 1895.
60 & 61 Vict. cap. ccxxx. -	The Bristol Corporation Act 1897.
1 Edward VII. cap. cclxiv. -	The Bristol Docks and Railways Act 1901.
2 Edward VII. cap. cxlii. -	The Bristol Corporation Act 1902.
3 Edward VII. cap. ccxi. -	The Bristol Corporation Act 1903.
Local Government Board -	The Bristol Confirmation Order 1898.
46 & 47 Vict. cap. ccxxi. -	The Bristol Electric Lighting Order 1883.

THE SECOND SCHEDULE.

DESCRIPTION OF THE CITY OF BRISTOL AS EXTENDED BY THIS ACT.

(a) The existing city of Bristol.

(b) The parishes of Shirehampton and Westbury-upon-Trym in the rural district of Barton Regis.

(c) The parish and urban district of Horfield.

(d) So much of the parish of Henbury as is bounded by an imaginary line commencing on the bank of the River Severn at the northernmost point of the boundary of the existing city thence proceeding in a south-easterly direction along the north-eastern sides of the enclosures numbered 1504 1501 1502 1517 1518 1581 1580 1579 1612 1613 and 1634 to the easternmost corner of the said enclosure numbered 1634 thence in a straight line in a southerly direction to a point in the boundary of the said parish of Shirehampton at the north-eastern corner of the enclosure numbered 62 in the said parish of Shirehampton thence in a northerly and north-westerly direction along the boundary between the said parishes of Henbury and Shirehampton to the point where it meets the boundary of the existing city at Avonmouth thence in a north-easterly direction along the boundary between the existing city and the said parish of Henbury to the point of commencement herein-before described of the said imaginary line.

(e) So much of the said parish of Henbury as is bounded by an imaginary line commencing at a point in the boundary of the said parish

A.D. 1904. of Shirehampton where such boundary meets the northern side of the enclosure No. 2122 thence in an easterly direction along the northern and north-eastern sides of the said enclosure No. 2122 to the south-western corner of the enclosure No. 2085 to the main road from Bristol to Kingsweston thence in an easterly direction across the said road to the north-western corner of the enclosure No. 2090 thence along the northern and north-eastern sides of the said enclosure to the easternmost corner thereof thence in a straight line in a south-easterly direction to the south-western corner of the enclosure No. 2092 thence along the southern side of the said enclosure to the western side of the enclosure No. 2098 thence in a straight line in a north-easterly direction to the boundary between the said parishes of Henbury and Westbury-upon-Trym thence in a southerly direction along the said boundary to the point where the same meets the boundary of the existing city on the bank of the River Avon thence in a north-westerly direction along the boundary of the existing city and the said parish of Henbury to the point where the said boundary meets the boundary of the parish of Shirehampton thence along the said boundary between the parishes of Henbury and Shirehampton to the point of commencement herein-before described of the said imaginary line.

NOTE.—The numbers referred to in this schedule are in all cases (unless expressly stated to the contrary) the numbers whereby the properties in relation to which the same are used are respectively distinguished on the $\frac{1}{2500}$ Ordnance map (second edition 1903) of the said parish of Henbury.

THE THIRD SCHEDULE.

RATES OF TONNAGE ON VESSELS ENTERING THE PORT OF BRISTOL.

	£	s.	d.
For every vessel trading from the West Coast of North or South America the East Coast of South America south of the Rio de la Plata inclusive of places on that river all islands in the Pacific Ocean and the Southern Whale Fishery - per ton	0	2	6
For every vessel trading from Mexico the East Coast of Central America the West Indies and the East Coast of South America north of the Rio de la Plata - - - - per ton	0	2	4
For every vessel trading from India Ceylon Burmah Japan Corea China Eastern Siberia Manchuria Siam Beloochistan Persia Arabia the East Indies and all islands in the Indian Ocean per ton	0	2	3
For every vessel trading from Australia New Zealand Africa Mauritius Madagascar Madeira St. Helena Ascension Azores the Canary Islands and Cape de Verde Islands - per ton	0	2	0
For every vessel trading from the East Coast of the United States of America except vessels trading from Portland Maine per ton	0	1	10

	£	s.	d.	A.D. 1904.
For every vessel trading from Eastern Canadian ports Portland Maine Newfoundland Labrador Greenland the Northern Whale Fishery Spain without the Straits Portugal Sweden all ports within the Cattegat and Baltic Sea the White Sea and all ports to the eastward of the North Cape - - - per ton	0	1	9	
For every vessel trading from any European or Asiatic port within the Straits of Gibraltar - - - - - per ton	0	1	6	
For every vessel trading from any other European port including the islands of Guernsey Jersey Alderney and Sark the Faro Islands and Iceland - - - - - per ton	0	1	0	
For every vessel trading from Ireland the Isle of Man Scotland or as a coaster not including vessels from Barry Penarth Cardiff Newport and other ports to the eastward of the Holmes per ton	0	0	6	
For every vessel from Barry Penarth Cardiff Newport or any other port to the eastward of the Holmes (not being vessels one-third part of the lading of which shall consist of coal scroff-iron tin tin-plates grain copper bricks stone coal-tar slate bark timber or wood) as follows:—				
If such vessel shall be under 40 tons burthen for each voyage	0	7	6	
If such vessel shall be 40 tons burthen and under 75 tons for each voyage - - - - -	0	12	6	
If such vessel shall be 75 tons burthen and under 100 tons for each voyage - - - - -	0	16	0	
If such vessel shall be 100 tons burthen or upwards for each voyage - - - - -	1	1	0	
For every vessel from Barry Penarth Cardiff Newport or any other port to the eastward of the Holmes one-third part of the lading of which shall consist of coal scroff-iron tin tin-plates grain copper bricks stone coal-tar slate bark timber or wood as follows:—				
If such vessel shall not exceed 75 tons burthen for each voyage - - - - -	0	5	0	
If such vessel shall exceed 75 tons burthen for each voyage -	0	7	6	
For every vessel trading from any port or place not herein-before specified - - - - - per ton	0	3	0	

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